

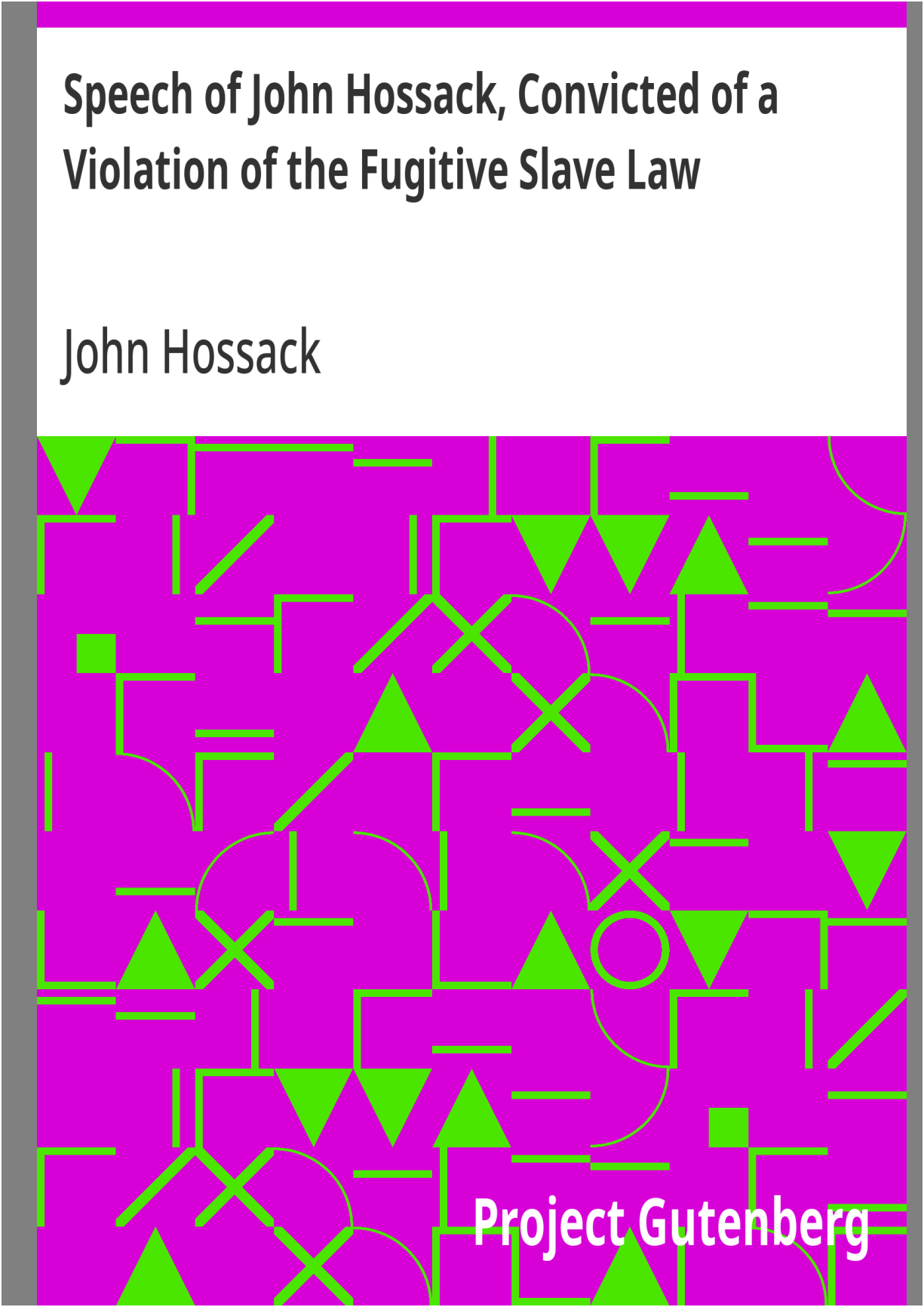
Speech of John Hossack, Convicted of a Violation of the Fugitive Slave Law

John Hossack

Project Gutenberg

Speech of John Hossack, Convicted of a Violation of the Fugitive Slave Law

John Hossack



Project Gutenberg

The Project Gutenberg eBook of Speech of John Hossack, Convicted of a Violation of the Fugitive Slave Law

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Speech of John Hossack, Convicted of a Violation of the Fugitive Slave Law

Author: John Hossack

Release date: November 9, 2004 [eBook #13987]

Most recently updated: October 28, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/13987

Credits: Produced by Curtis Weyant, Andrea Ball and the Online Distributed Proofreading Team.

*** START OF THE PROJECT GUTENBERG EBOOK SPEECH OF
JOHN HOSSACK, CONVICTED OF A VIOLATION OF THE FUGITIVE
SLAVE LAW ***

SPEECH OF JOHN HOSSACK,

**CONVICTED OF A
VIOLATION OF THE FUGITIVE SLAVE LAW,**

**BEFORE JUDGE DRUMMOND,
OF THE
UNITED STATES DISTRICT COURT, CHICAGO, ILL.**

**NEW YORK: PUBLISHED BY THE AMERICAN ANTI-SLAVERY
SOCIETY. 1860.**

SPEECH OF JOHN HOSSACK.

[At the February term of the U.S. District Court for the Northern District of Illinois, JOHN HOSSACK and JOSEPH STOUT, of Ottawa, were convicted of having aided in rescuing a fugitive slave from the custody of the U.S. Deputy Marshal at Ottawa, Oct. 20, 1859, and sentenced by Judge Drummond to pay a fine of one hundred dollars, and be imprisoned ten days. Mr. HOSSACK is a Scotchman by birth, but spent many years of his life in Quebec, following the occupation of a baker. About twenty years since, he removed to Ottawa, Illinois, and assisted in the construction of the Illinois and Michigan Canal. He has been for some years past a prominent dealer in grain, has acquired a competency by enterprise and industry, and is considered one of the most upright and intelligent citizens in the community. The following Plea, made by him before the Court, evinces true nobility of soul, the highest moral integrity, the most generous humanity, and genuine manly eloquence. Let it be read in every household, so that the execution of the infamous Fugitive Slave Act, in every part of the North, shall be rendered impracticable by a regenerated public sentiment.]

MAY IT PLEASE THE COURT:

I have a few words to say why sentence should not be pronounced against me. I am found guilty of a violation of the Fugitive Slave Law, and it may appear strange to your Honor that I have no sense of guilt. I came, Sir, from the tyranny of the Old World, when but a lad, and landed upon the

American shores, having left my kindred and native land in pursuit of some place where men of toil would not be crushed by the property-holding class. Commencing the struggle of life at the tender age of twelve years, a stranger in a strange land, having to earn my bread by the sweat of my brow, your Honor will bear with me. Unaccustomed as I am to appear in Courts, much less to address them, I have feared that I might fail in bearing myself on this occasion worthy of the place and the position I occupy, and the great principles involved in the case before you. I say to your Honor, therefore, if I fail in observing the usual forms of the place, it will be from a want of judgment and error of the head, and not of the heart. Therefore I do not think I shall fare worse at the hands of your Honor, if I state plainly my views and feelings on the great question of the age—the rights of man. I feel that it is a case that will be referred to long after you and I have gone to meet the great Judge of all the earth.

It has been argued by the prosecution that I, a foreigner, protected by the laws of my adopted country, should be the last to disobey those laws; but in this I find nothing that should destroy my sympathy for the crushed, struggling children of toil in all lands.

Surely, I have been protected. The fish in the rivers, the quail in the stubble, the deer in the forest, have been protected. Shall I join hands with those who make wicked laws, in crushing out the poor black man, for whom there is no protection but in the grave, where the wicked cease from troubling, and the weary are at rest?

It is true, Sir—I am a foreigner. I first saw the light among the rugged but free hills of Scotland; a land, Sir, that never was conquered, and where a slave never breathed. Let a slave set foot on that shore, and his chains fall off for ever, and he becomes what God made him—a man. In this far-off land, I heard of your free institutions, your prairie lands, your projected canals, and your growing towns. Twenty-two years ago, I landed in this city. I immediately engaged on the public works, on the canal then building that connects this city with the great river of the West. In the process of time, the State failed to procure money to carry on the public works. I then opened a prairie farm to get bread for my family, and I am one of the men who have made Chicago what it is to-day, having shipped some of the first grain that was exported from this city. I am, Sir, one of the pioneers of Illinois, who

have gone through the many hardships of the settlement of a new country. I have spent upon it my best days, the strength of my manhood. I have eleven children, who are natives of this my adopted country. No living man, Sir, has greater interest in its welfare; and it is because I am opposed to carrying out wicked and ungodly laws, and love the freedom of my country, that I stand before you to-day.

Again, Sir, I ought not to be sentenced because, as has been argued by the prosecution, I am an Abolitionist. I have no apologies to make for being an Abolitionist. When I came to this country, like the mass from beyond the sea, I was a Democrat; there was a charm in the name. But, Sir, I soon found that I had to go beyond the name of a party in this country, in order to know any thing of its principles or practice. I soon found that however much the great parties of my adopted country differed upon banks, tariffs and land questions, in one thing they agreed, in trying which could stoop the lowest to gain the favor of the most cursed system of slavery that ever swayed an iron rod over any nation, the Moloch which they had set up, to which they offered as human sacrifice millions of the children of toil. As a man who had fled from the crushing aristocracy of my native land, how could I support a worse aristocracy in this land? I was compelled to give my humble name and influence to a party who proposed, at least, to embrace in its sympathies all classes of men, from all quarters of the globe. In this choice, I found myself in the company of Clarkson and Wilberforce in my native land, and of Washington and Franklin, and many such, in this boasted land of the free; and more than all these, the Redeemer in whom I humbly trust for acceptance with my God, who came to heal the broken-hearted, to preach deliverance to the captives, to set at liberty those who were bruised; yea, this very religion binds me to those in bonds as bound with them. Tell me, Sir, with these views, can I be any thing but an Abolitionist? Surely, for this I ought not to be sentenced.

Again, Sir, I ought not to be sentenced, because the Fugitive Slave Law, under which I am torn from my family and business by the supple tools of the Slave Power, the slave-breeder and the slave-hunter, is at variance with both the spirit and letter of the Constitution. Sir, I place myself upon the Constitution, in the presence of a nation who have the Declaration of Independence read to them every Fourth of July, and profess to believe it. Yea, in the presence of civilized man, I hold up the Constitution of my

adopted country as clear from the blood of men, and from a tyranny that would make crowned heads blush. The parties who prostitute the Constitution to the support of slavery are traitors—traitors not only to the liberties of millions of enslaved countrymen, but traitors to the Constitution itself which they have sworn to support. A foreigner upon your soil, I go not to the platforms of contending parties to find truth. I go, Sir, to the Constitution of my country: the word slave is not to be found. I read, "We, the people of the United States, in order to form a more perfect Union, establish justice,"—yes, Sir, *establish justice*—"to promote the general welfare, and to secure the blessings of liberty to ourselves and our posterity, do ordain and establish this Constitution for the United States of America." These were the men who had proclaimed to the world that *all* men were created equal; that they were endowed by their Creator with certain inalienable rights—life, liberty, and the pursuit of happiness; and contended even unto death for seven long years. Can it be, Sir, that these great men, under cover of those hallowed words, intended to make a government that should outrage justice and trample upon liberty as no other government under the whole heavens has ever done? This dreadful power, that has compelled the great political parties of the country to creep in the dust for its favor; that has debauched to a large extent the Christianity of the nation; that bids a craven priesthood stand with Golden Rule in hand, and defend the robbing of mothers of their babes, and husbands of their wives; that bids courts decree injustice; Sir, I plant myself upon the Constitution, and demand justice and liberty, and say to this bloody Moloch, Away! Sir, the world has never furnished so great a congregation of hypocrites as those that formed the Constitution, if they designed to make it the greatest slaveholder, slave-breeder and slave-catcher on earth. He is a great slaveholder that has a thousand slaves; but if this law is a true exponent of the Constitution, this Government, ordained for justice and liberty, holds four millions of slaves.

No, Sir! no! for the honor of the fathers of my country, I appeal from the bloody slaveholding statute to the liberty-loving Constitution. While these fathers lived, State after State, in carrying out the spirit of the Constitution, put an end to the dreadful system. The great Washington, in his last will and testament, carried out the spirit of the Constitution.

But, sir, the law under which you may sentence me violates both the letter and the spirit of the Constitution. I have a word to say upon the articles of the Constitution which it is claimed the Fugitive Slave Law is designed to carry out.

"No person held to service or labor in one State, under the laws thereof, escaping into another, shall in consequence of any law or regulation therein, be discharged from such service or labor, but shall be delivered up on the claim of the party to whom such service or labor is due."

That is the provision that is claimed transforms the Government into a monster of iniquity. I have read, over and over, that article, interpreted by all laws of language known to a plain man. How these three or four lines can transform this Government, ordained to secure justice, into a mean tool to aid the plunderers of cradles, the destroyers of home, the ravishers of women, and the oppressors of men, to carry on their hellish work—how it can do this thing, I cannot see. That article binds the several States separately not to pass a certain law, but where in it do we find a Fugitive Slave Law? Where do you find a Commissioner? Where do you find that the Government is to hunt up and return, at its own expense, a slave that flees from his cruel and bloody master? Where in those lines is the authority to compel me to be a partaker in the crimes of the man-stealer? The General Government is not once mentioned; but the States in their separate sovereignties are named. But, Sir, this article expressly provides that the party making the claim shall have owed him service, or labor due from the party claimed. If Jim Gray owed service, or labor, or money, to Phillips, I am the last man in the world to raise my voice or hand to prevent Phillips, or any man, from obtaining his dues. What I would grant to the devil himself, I would not withhold even from the slaveholder—his due. Jim Gray claims that he does not owe Phillips a day's work or a dollar of money. Phillips claims that he owes him every day's work that has been deposited in his bones and sinews; yea, the toil of his body and mind both, till death shall end the period of stipulated toil. Here is a question for legal examination and judicial discussion. Does the man Gray owe this man Phillips any thing? The Constitution is very clear and very plain in pointing out the way this question is to be settled.

Article V. provides that no person shall be deprived of life, liberty or property without due process of law. That Jim Gray is a person, is admitted on all hands. Phillips admits it; the blood-hounds, marshals and attorneys that hunt him, say he is a person—a person held to service. The amount in dispute is the liberty and life-long toil of a man just entering into the full maturity of manhood. A great question lies between these men. But Gray, standing on soil covered by this Constitution, can be robbed of liberty, or the wages of his toil, only by due process of law.

Article VII. says, expressly, in suits at common law, when the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved. Here, sir, is a case involving the question of liberty, and hundreds of dollars of money. The law, Sir, under which I appear before you, overrides these plain provisions, and commits this whole question to one man, and offers him a bribe to trample right and liberty under foot. I know, Sir, it may be said that Jim Gray was a slave, and not entitled to these humane provisions. Had he never worn the chain of the oppressor, nor felt the lash of the bloody task-master—had he been born in Canada, or any where else on the globe—had he been a citizen of one of the States of this Union, and never been enslaved, it would have been all the same. His liberty would have been stricken down, and he been given to the party claiming his life-long toil, and your Commissioner would have pocketed the bribe offered by this law for doing such a crime against humanity and the plainest provisions of the Constitution.

No sir; in a Court of the United States, where the Constitution provides for trial by jury, I ought not to be sentenced for raising my hand to rescue a fellow-man from a mob that would strip him of his liberty and life-long toil without due process of law, without trial by jury. Sir, this, law tramples so flagrantly upon the spirit and letter of the Constitution, that I ought not to be sentenced.

Before passing from the Constitutional objections to this law, I would call the attention of your Honor to the partiality of the law, which is so at variance with the designs of the Fathers in organizing this Government. No man can read the Constitution—in which the word slave cannot be found; from which the idea that a man could be reduced to a thing, and held as property, was carefully excluded—no man, I say, can read that Constitution,

and come to the conclusion that slavery was to be *fostered, guaranteed* and *protected* far beyond every thing else in the country. Admit that Jim Gray was Phillips's property, how comes it that that particular property is more sacred than any other property? Phillips's horse escapes from him, and is found in a distant State; but the President of the United States, and every department of Government, are not put on the track to find the horse, and return him to Phillips's stable, and then pay the whole bill from the National Treasury. No, Sir. But his slave escapes—he runs away, and, for some reason, his property in man is so much more holy and sacred, that the whole Government is bound to take the track and hunt, the poor panting fugitive down, and carry him back to his chains and bondage at the Government's expense.

Sir, under a Constitution unstained by the word slave, we have a law magnifying slave property above all other property in the nation—a law giving it guarantees that no other property could possibly obtain. Sir, the partiality of this law is so great, that it stands opposed to a Constitution that guarantees equal justice and protection to all.

John G. Fee is driven out of his Kentucky home, and robbed of the fruits of his life-long toil. There is no power to secure him his home, or protect him in his rights of property or opinion. But had John G. Fee only owned a slave, and his slave escaped, the Government, under this law, would have followed his slave to the utmost limit of the United States, and returned his slave to him at its own expense. Your Honor will pardon me, (if I need pardon,) but I cannot, for the life of me, see what there is in robbing a man of his inalienable rights and enslaving him for life, that should entitle it to the special and peculiar protection of national law.

I am aware, Sir, that I shall be reminded that judges, marshals, attorneys, and many citizens, regard this law as Constitutional, and stand ready to execute it, though it trample every principle of the Declaration of Independence in the dust. Sir, no law can be enacted so bad but that it will find men deluded or base enough to execute it. The law of Egypt that consigned the new-born babe to the slaughter found tools for its execution. The bloody decree of Herod found men ready to obey the law of the country, though it commanded the slaughter of the innocents of a province, Sir, tell me not of men ready and willing to execute the law! My Redeemer,

whose name I am hardly worthy to speak, and yet whose name is all my trust, although he knew no sin, yet he was crucified by law.

Again, Sir, it will be said that some whom the world calls Doctors of Divinity and Doctors of Law have undertaken to prove that slavery was guaranteed by the Constitution. If that be so, in the name of the Most High God, tear out the red strip of blood; it was not written by the Angel Gabriel, nor nailed to the throne of the Almighty. If slavery is in it, it is "a covenant with death, and an agreement with hell."

But, Sir, I have one consideration more that I will urge why sentence ought not to be pronounced against me. This law, which I think I have proved outrageous to the rights of man, is so obviously at variance with the law of that God who commands me to love Him with all my soul, mind, might and strength, and my neighbor as myself, and the Redeemer who took upon him my nature and the nature of poor Jim Gray has been so particular in telling me who my neighbor is, that the path of duty is plain to me. This law so plainly tramples upon the divine law, that it cannot be binding upon any human being under any circumstances to obey it. The law that bids me do to other men as I would have other men do to me, is too plain, too simple to be misunderstood. But, Sir, I am not now left to the general law of love in searching for my duty in this particular case. Permit me to refer your Honor to the oldest law-book in existence. Though it may not be in use in this Court, yet I think it better authority than Blackstone or any law-book that ever was written. It is the book of books. In that book, I find some special enactments given to the Hebrew commonwealth, that leave me in no doubt as to my duty in reference to this law. "He that stealeth a man and selleth him, or if he be found in his hands, he shall surely be put to death." Again: "Thou shalt not deliver unto his master the servant that has escaped from his master unto thee; he shall dwell with thee, even among you, in that place he shall choose in one of thy gates where it liketh him best; thou shalt not oppress him." These plain statutes, with many more that I might give, leave me in no doubt as to the mind of the unchanging Jehovah, in reference to man-stealing and slave-hunting. Sir, the whole system of slavery originated in man-stealing, and is perpetuated by fraud and violence and plunder. Others may have their doubts as to their duty under this law; I, Sir, have none. This law is just as binding on me as was the law of Egypt to slaughter Hebrew children; just as binding as the law that said, Worship the

golden image, worship not God; just as binding as the law forbidding Christ and his Apostles to preach the Gospel. Send me a law bidding me rob or murder my neighbor, I must decline to obey it. I can suffer, but I must not do wrong. Send me a law bidding me join hands in robbing my fellow-men of their freedom, I cannot do so great a wrong. Yea, send me a law bidding me stop my ears to the cry of the poor, I can suffer the loss of all these hands have earned, I can suffer bonds and imprisonment—yes, God helping me, I can give up my life—but I cannot knowingly trample upon the law of my God, nor upon the bleeding, prostrate form of my fellow-man. I go not to Missouri to relieve oppressed humanity, for my duty has called me nearer home; but when He that directs the steps of man conducts a poor, oppressed, panting fugitive to my door, and there I hear his bitter cry, I dare not close my ear against it, lest in my extremity I cry for mercy, and shall not be heard. Sir, this law so flagrantly outrages the divine law, that I ought not to be sentenced under it.

A single remark, and I have done. From the testimony, (part of which is false,) and from your rendering and interpretation of the law, the jury have found me guilty; yes, guilty of carrying out the great principles of the Declaration of Independence; yes, guilty of carrying out the still greater principles of the Son of God. Great God! can these things be? Can it be possible? What country is this? Can it be that I live in a land boasting of freedom, of morality, of Christianity? How long, O, how long shall the people bow down and worship this great image set up in this nation? Yes, the jury say guilty, but recommend me to the mercy of the Court. Mercy, Sir, is kindness to the guilty. I am guilty of no crime, I therefore ask for no mercy. No, Sir, I ask for no mercy; I ask for justice. Mercy is what I ask of my God. Justice in the Courts of my adopted country is all I ask. It is the inhuman and infamous law that is wrong, not me.

My feelings are at my home. My wife and my children are dear to my heart. But, Sir, I have counted the cost. I am ready to die, if need be, for the oppressed of my race. But slavery must die; and when my country shall have passed through the terrible conflict which the destruction of slavery must cost, and when the history of the great struggle shall be candidly written, the rescuers of Jim Gray will be considered as having done honor to God, to humanity, and to themselves.

I am told there is no appeal from this Court; yet I do appeal to the Court of High Heaven, when Judge Drummond and Judge Caton, the rescuer and the rescued, shall all have to stand at the judgment-seat of the Most High.

I have, Sir, endeavored to obey the Divine law and all the laws of my country that do not conflict with the laws of my God. My humble wish is, that it may then appear that I have done my duty. All I wish to be written on my tomb-stone is, "He feared God and loved his fellow-men."

*** END OF THE PROJECT GUTENBERG EBOOK SPEECH OF JOHN
HOSSACK, CONVICTED OF A VIOLATION OF THE FUGITIVE
SLAVE LAW ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.